

IN THE HON'BLE HIGH COURT OF DELHI AT NEW DELHI
(CIVIL WRIT JURISDICTION)

WRIT PETITION (CIVIL) NO. _____ OF 2026

IN THE MATTER OF:

MAMTA GOYALPETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR.RESPONDENTS

INDEX

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

E-mail: adv@ronniebrara.com

Date: .08.2026

Place: Delhi

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URGENT APPLICATION

To,

The Deputy Registrar

Delhi High Court

New Delhi

Sir,

Kindly treat the accompanying Application as an urgent one as per High Court Rules and Orders.
The ground of urgency is that "as prayed for in the accompanying Application". Kindly list the matter
on _____.

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

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PUNJAB NATIONAL BANK & ANR.RESPONDENTS

To,

Punjab National Bank

Through its Authorised Officer

Branch Sadar Bazar, Delhi at

Bara Tooti Chowk, Sadar Bazar,

Delhi-110006

Also at:

Punjab National Bank

Through its Authorized Officer,

Circle Sastra, East Delhi,

CSC, Mayur Vihar, Phase- II,

Delhi-110091

NOTICE OF MOTION

Take notice that the accompanying Writ Petition as per the main index is being filed on behalf of the
Petitioner, and the same is likely to be listed before the Hon`ble High Court on _____ or
any other subsequent date(s).

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

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To,

Mr. Maninder Bedi,

Director, M/s Alliance Exporttrade Pvt. Ltd.

47/28, UGF, East Patel Nagar,

New Delhi – 110008

NOTICE OF MOTION

Take notice that the accompanying Writ Petition as per main index is being filed on behalf of the Petitioner and the same is likely to be listed before the Hon`ble High Court on _____ or any other subsequent date(s)

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

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MEMO OF PARTIES

Mamta Goyal

W/o Sh. Deepak Goyal

R/o C-37A, Inderpuri,

New Delhi – 110021

Email – adv@ronniebrara.com

Ph No. - +91-8882228686

.....Petitioner

-Versus-

Punjab National Bank

Through its Authorised Officer

Branch Sadar Bazar, Delhi at

Bara Tooti Chowk, Sadar Bazar,

Delhi-110006

Also at:

Punjab National Bank

Through its Authorised Officer,

Circle Sastra, East Delhi,

CSC, Mayur Vihar, Phase- II,

Delhi-110091

Email – coeastdelhi@pnb.co.in, cs8075@pnb.co.in, zs834@pnb.co.in; nishi.eap@gmail.com

Mr. Maninder Bedi

Director, M/s Alliance Exporttrade Pvt. Ltd.

R/o 47/28, UGF, East Patel Nagar,

New Delhi – 110008

Email – ft61raessa@gmail.com

.... Respondents

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

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SYNOPSIS

The present writ petition is being filed by the Petitioner under Articles 226 and 227 of the Constitution of India seeking urgent directions to the Ld. DRAT- Delhi or to Respondent No.1 Bank concerning a dispute arising from an auction conducted by Respondent No.1 Bank under SARFAESI Act, 2002. The Petitioner is Highest bidder in an auction held on 22.08.2019, for subject

properties mortgaged by borrower/ Respondent No.2. The petitioner deposited 25% of the sale consideration, as per the terms of the Auction.

That following the auction, Respondent No.2 challenged the auction process before Ld. DRT, Delhi by filing a Securitization Application (SA) u/s 17 of SARFAESI Act, 2002, leading to an order by Ld. DRT on 04.09.2019, wherein a second auction was directed to be conducted on the premise that the proposed buyer of borrower/Respondent No. 2 is offering higher amount for mortgaged properties. Petitioner, aggrieved by this order, appealed to Ld. DRAT, Delhi. The Ld. DRAT, on 17.09.2019, did not grant an injunction but noted concerns about recording of alleged consent of Petitioner and Respondent No.1 Bank for a re-auction. Pertinently, it is the consistent stand of Petitioner as well as Respondent No.1 Bank that no such consent was there. Despite this, Respondent No.1 bank proceeded with a second auction on 17.09.2019 itself in terms of the order dated 04.09.2019 of Ld. DRT.

Subsequently, the petitioner filed a Writ Petition bearing W.P. (C) No. 10638/2019 before this Hon'ble Court. Pertinently, during the pendency of the aforesaid Writ Petition, Mrs. Madhu Kharbanda, who was the successful auction purchaser in the 2nd auction proceedings, filed an application seeking impleadment in the aforesaid Writ Petition and also for withdrawal from the 2nd auction and accordingly was allowed to withdraw from the 2nd auction and the Respondent Bank was directed to refund to Mrs. Madhu Kharbanda the aforesaid sum of Rs. 1.05 Crores together with the interest accrued thereon. Consequently, the challenge to the 2nd auction proceedings stood addressed. Thus, this Hon'ble Court, vide order dated 19.12.2019 (hereinafter referred as the "Remand Order") disposed of the aforesaid writ petition, remanding the matter back to Ld. DRT to decide whether a fresh auction was necessary or if the first auction should be confirmed.

Following the remand, the Respondent no.1 bank demanded the remaining 75% of the sale consideration from the Petitioner, despite the Ld. DRT not having decided on the confirmation of the first auction. The petitioner responded, asserting that the matter was pending before the DRT. However, the Respondent no.1 bank forfeited the 25% deposit on 28.02.2020. The petitioner filed applications before the Ld. DRT, including an impleadment application and an application against the forfeiture notice.

The Ld. DRT, on 24.02.2022 allowed the petitioner's impleadment application. After hearing arguments, the Ld. DRT, vide Judgement dated 31.07.2023, dismissed the securitization application filed by Respondent No.2 and also set aside the action of Respondent No. 1 bank of forfeiture of the petitioner's 25% deposit but directed the Respondent bank to conduct a fresh auction. The Respondent No.1 was not given any direction for refund of the 25% Sale consideration amount deposited by the Petitioner herein with the Respondent Bank.

Aggrieved by the order of Ld. DRT dated 31.07.2023, the petitioner filed a Regular Appeal No. 213/2023 before Ld. DRAT, which has not yet been heard. Respondent Bank has also filed a Regular Appeal No. 271/2023, which has been connected with petitioner's appeal and also remains unheard.

The appeals remained pending for a considerable period without any effective hearing. Consequently, the Petitioner earlier approached this Hon'ble Court by filing W.P.(C.) No.4931 of 2025, seeking expeditious disposal of the pending appeal along with alternative substantive reliefs. Vide order dated 21.04.2025, this Hon'ble Court disposed of the writ petition by granting liberty to the Petitioner to approach the Ld. DRAT for expeditious disposal of the pending Regular Appeal No. 213/2023.

Pursuant to the liberty granted by this Hon'ble Court, the Petitioner diligently pursued proceedings before Ld. DRAT. The appeals were finally heard on 04.07.2025, written submissions were filed by Petitioner on 16.07.2025, and the matter was reserved for pronouncement of judgment. However, before judgment could be pronounced, Ld. Chairperson, DRAT-Delhi demitted office. Thereafter, owing to successive administrative arrangements involving additional charge of different Chairpersons and subsequent appointment of a new Chairperson, the appeals have remained pending without any final adjudication. Despite repeated requests made by Petitioner and despite

several applications seeking urgent hearing, the matter continues to remain pending and presently stands listed for 24.09.2026.

The delay in disposal of appeal is entirely attributable to institutional and administrative circumstances beyond Petitioner's control. The Petitioner has been diligently prosecuting her remedies at every stage and is suffering for nearly 7 years.

The Petitioner has now been deprived of both the auctioned property and use of her deposited amount of ₹1,03,75,000/- for nearly 7 years, without any final adjudication of her statutory Appeal. The prolonged pendency has caused grave financial prejudice and irreparable injury to the Petitioner, defeating the very object of the appellate remedy provided under Section 18 of the SARFAESI Act. Thus, the present petition raises exceptional circumstances warranting exercise of the extraordinary and supervisory jurisdiction of this Hon'ble Court under Articles 226 and 227 of the Constitution of India.

Thus, by present Writ Petition, the petitioner seeks following reliefs: (i) Direction to Ld. DRAT, Delhi to expedite disposal of Regular Appeal No. 213/2023; (ii) Alternatively, direction to Respondent No.1 Bank to forthwith refund deposited/forfeited 25% of the EMD/Sale Consideration amount along with accrued interest thereon from date of deposit till date of actual payment; (iii) Alternatively, direction to Respondent No.1 Bank to accept balance 75% amount of the 1st auction and consequently issue Sale Certificate and hand over possession of the properties. The petition highlights the inaction of the Ld. DRAT Delhi in hearing the appeals, arbitrary actions of Respondent No.1 Bank, and the failure of the Ld. DRT to address the confirmation of the first auction.

LIST OF DATES AND EVENTS

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

E-mail: adv@ronniebrara.com

Date: .08.2026

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MAMTA GOYALPETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR.RESPONDENTS

WRIT PETITION UNDER ARTICLE 226 AND 227 OF THE CONSTITUTION OF INDIA SEEKING DIRECTION TO THE LD. DEBTS RECOVERY APPELLATE TRIBUNAL, NEW DELHI TO EXPEDITIOUSLY DISPOSE OF THE PENDING REGULAR APPEAL NO. 213/2023 IN A TIME-BOUND MANNER; OR ALTERNATIVELY, DIRECTION TO THE RESPONDENT BANK TO ACCEPT THE BALANCE 75% AMOUNT OF THE 1ST AUCTION DATED 22.08.2019 AND CONSEQUENTLY ISSUE THE SALE CERTIFICATE AND HAND OVER POSSESSION OF THE SUBJECT AUCTIONED PROPERTIES; OR ALTERNATIVELY, DIRECTION TO THE RESPONDENT NO. 1 BANK TO FORTHWITH REFUND TO PETITIONER THE FORFEITED 25% OF THE EMD/SALE CONSIDERATION AMOUNT ALONG WITH INTEREST ACCRUED

THEREON FROM THE DATE OF DEPOSIT TILL THE DATE OF ACTUAL PAYMENT.

MOST RESPECTFULLY SHOWETH:

To,

The Hon`ble Chief Justice, Delhi High Court and his accompanying Ld. Judges of the Hon`ble Delhi High Court:

The Petitioner, herein is the Successful Auction Purchaser in an auction conducted by the Respondent No.1 Bank under the provisions of the Securitization and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (hereinafter referred as "the SARFAESI Act, 2002"), and is constrained to approach this Hon'ble Court under Articles 226 and 227 of the Constitution of India. This Petition challenges the arbitrary actions of the Respondent Bank, the erroneous order of the Ld. Debts Recovery Tribunal, Delhi (Ld. DRT), and the inaction of the Ld. Debts Recovery Appellate Tribunal, New Delhi (Ld. DRAT), all of which have resulted in grave injustice to the Petitioner and the wrongful forfeiture of a substantial sum of money deposited by the Petitioner with the Respondent No.1 Bank towards EMD/partial Sale consideration.

The present Petition arises from a dispute concerning an auction sale of subject properties under the SARFAESI Act, 2002. The Petitioner participated in an auction conducted by the Respondent Bank and was declared the successful bidder. However, subsequent legal proceedings, including challenges by the parties before the Ld. DRT and the Ld. DRAT, have led to a series of orders and events that have left the Petitioner in a precarious position, having deposited a significant sum of money for approximately 7 years which has been arbitrarily and illegally forfeited by the Respondent No.1 Bank. The Petitioner by filing the present Writ Petition is now seeking urgent intervention from this Hon'ble Court to secure her rights and interests.

The Petitioner seeks redressal against the undue delay in the adjudication of the appeal by the Ld. DRAT Delhi; unlawful forfeiture of her Earnest Money Deposit/ 25% of the Sale consideration by the Respondent No.1 Bank; and the erroneous order of the Ld. DRT, Delhi dated 31.07.2023. The Petitioner is left with no other efficacious remedy but to invoke the extraordinary jurisdiction of this Hon'ble Court to ensure that justice is served and the Petitioner's legitimate rights are protected.

That the brief facts leading up to filing of the present Writ Petition are as follows:

That the Petitioner is a successful Highest bidder in the First Auction conducted by the Respondent Bank under the provisions of the SARFAESI Act, 2002 in respect of the equitable mortgaged properties of the borrower/Respondent No. 2 herein i.e., (1) Basement and Ground Floor, Nazafgarh Road, Industrial Area, Rama Road, Delhi-110015 standing in the name of wife of Respondent No. 2 i.e. Mrs. Usha Bedi (hereinafter referred as "Subject Property No.1") and (2) First, Second and Third Floor, Property bearing No. 70 B/2, Nazafgarh Road, Industrial Area, Rama Road, Delhi 110015 standing in the name of Maninder Bedi i.e. Respondent No.2 (hereinafter referred as "Subject Property No.2" and both the properties collectively referred as "Subject Properties").

That the Respondent No.1 Bank herein i.e., Punjab National Bank is a body corporate constituted under the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970, and granted credit facilities to M/s Alliance Exporttrade Pvt. Ltd.

That the Respondent No.2 herein is the director of M/s Alliance Exporttrade Pvt. Ltd. and one of the borrower and mortgagor in the Loan account of M/s Alliance Exporttrade Pvt. Ltd and to secure the said credit facilities, the Respondent No.2 inter alia created equitable mortgage of the above—mentioned subject properties.

That pursuant to the default in repayment of the credit facilities, the Respondent No.1 bank initiated actions under the provisions of the SARFAESI Act, 2002 and issued a Sale Notice dated 02.07.2019 for auction of Subject Property no. 1 with the Reserve Price of Rs 98.35 Lacs and Subject Property No.2 with the Reserve Price of Rs 175.00 lacs. In terms of the above Sale Notice, the auction was scheduled to be held on 22.08.2019. A true copy of the 1st auction notice dated

02.07.2019 is attached herewith and marked as ANNEXURE-P1.

That it is submitted that the auction dated 22.08.2019 of the property No. 1 and 2 was successfully conducted by Respondent No.1 Bank and the Petitioner herein was declared as highest bidder in respect of both the subject properties with highest bid amount of Rs. 2.25 Crores in respect of subject property no.1 and Rs. 1.90 Crores in respect of subject property no.2 and the sale had also been confirmed by the Respondent No.1 Bank in favour of the Petitioner. That the Petitioner also deposited 25% of the total sale consideration with Respondent No. 1 Bank being a sum of Rs.1,03,64,000/- in compliance of the provisions under SARFAESI Act. A true copy of the Sale Confirmation Letters issued by the Respondent No.1 Bank to the Petitioner with respect to the subject property no. 1 and 2 are attached herewith and marked as ANNEXURE-P2 (COLLY).

That subsequently, the Respondent No.2 challenged the auction process conducted by the bank by filing a Securitization Application under section 17 of the SARFAESI Act, 2002 being S.A. No. 174/2019 (Now TSA 1033/2022) titled "Maninder Bedi vs Punjab National Bank" before the Ld. Debts Recovery Tribunal, New Delhi (hereinafter referred as "Ld. DRT"), wherein vide order dated 04.09.2019, the Ld. DRT passed an order to conduct the fresh auction on 17.09.2019 with the following observation/direction :

".....Considering the contention of both the sides and since the highest bidder, who is present in person today, submits that the buyer of the applicant is offering higher amount then the bid amount given by highest bidder, therefore, he is not interested in inter-se bidding and requests that fresh auction may be allowed.

2. Ld. counsel for the applicant has also agreed for the same and he submits that he will bring the buyer in the fresh auction.

3. Ld. Counsel for the Respondent has no objection for fresh auction subject to cost of fresh auction be borne by the applicant.

4. Looking to the contentions of the parties and since the auction purchaser is ready for fresh auction qua the entire property, which includes basement and ground floors, therefore, the Respondent is hereby directed to conduct the fresh auction qua the first, second and third floors as well as basement and ground floors of the property bearing No.70 B/2, Najafgarh Road, Industrial Area, Rama Road, Delhi-110015 on 17.09.2019 and as suggested by the Ld. counsel for the applicant the auction notice be published in "Times of India" and Nav Bharat Times" Delhi edition and the same may be done immediately.

5. The Respondent will fix the reserve price of Rs.2.25 crores for the basement and ground floors portion and Rs.1.90 crores for first, second and third floors portion and the auction would be taken on the same day for the entire property.

6. It is also agreed that the applicant, who is also the Director of M/s Alliance Expotrade Pvt. Ltd. accepts the sale notice for himself as well as his wife, who is also co-director and owner of part of the property, which would be take place on 17-09-2019 and he will file the affidavit qua the same.

7. It is also clarified that the amount so deposited by the highest bidder, in auction conducted on 22-08-2019, would be kept in no lien interest bearing account. Further, the highest bidder as now is not require to deposit any EMD amount in the auction, which would taken place on 17-09-2019, as he has already deposited 25% amount in the auction conducted on 22-08-2019.

8. The present highest bidder is also allowed to participate in the auction, which would be taken place on 17.09.2019 and in case the highest bidder could not compete other bidder on the said date i.e., on 17.09.2019 his amount would be refunded by the Respondent immediately with interest, if any. However, in case the highest bidder as of date succeed in the auction to be conducted on 17.09.2019 then he would deposit the amount as per rules.

9. The applicant is also allowed to bring his buyer to participate in the auction by depositing the EMD as per the terms & conditions of the bank.

10. List this case on 05.11.2019 for further direction, meanwhile, reply and rejoinder be filed before the next date..."

A true copy of the order dated 04.09.2019 passed in SA No. 174/2019 (Now TSA 1033/2022) before Ld. DRT titled as "Maninder Bedi vs Punjab National Bank" is annexed herewith and marked as ANNEXURE-P3.

That pertinently the Petitioner was ready with the balance Sale consideration and was seriously interested in buying the subject properties, however, it was wrongly recorded in the above-mentioned order passed by the Ld. DRT dated 04.09.2019 that the authorized representative of the Petitioner herein had given consent for quashing the auction which was successfully confirmed in favour of the Petitioner. That being aggrieved by the said order dated 04.09.2019 of the Ld. DRT, the Petitioner herein filed an Appeal under section 18 of the SARFAESI Act, 2002 before the Ld. Debts Recovery Appellate Tribunal, Delhi (hereinafter referred as. "Ld. DRAT") titled as "Mamta Goyal vs. Punjab National Bank, Misc. Appeal No. 382/2019". That pertinently, in above-mentioned Misc. Appeal No. 382/2019 before Ld. DRAT, it was also the stand of the Respondent No. 1 bank that the Respondent No.1 had not authorized its counsel to give any such consent for re-auction of the subject property but she gave no objection unauthorisedly and thus, the bank had withdrawn her from the case as bank's counsel. However, vide order dated 17.09.2019, the Ld. DRAT did not grant the relief of injunction to the Petitioner herein and passed the order as below:

"It is now well settled that no appeal lies against an order passed with the consent of the parties. However, counsel for the appellant raised a very serious grievance that though the representative of the appellant did appear before the learned DRT and he was authorised also to appear by the appellant to appear before the DRT at the time of hearing of the S.A since the appellant had by that time become aware of filing of the S.A by respondent no. 2, herein, for challenging the auction sale. He however, has submitted that the learned Presiding Officer has wrongly recorded that appellant's representative Sh. Sanjay Goyal had given consent for quashing of the auction already conducted successfully in favour of the appellant. He says that no such consent was given nor was there any occasion for giving such consent because appellant was seriously interested in buying the property and was also ready with balance sale consideration which however, could not be paid to the bank because auction stood set aside by the impugned order. Counsel also submitted that in fact in the impugned order it was also recorded wrongly by the learned Presiding Officer that all the parties including bank was ready for a re-auction while in fact the fact is that authorised officer of the bank represented the bank at the time of the hearing of the S.A had also not given any such consent. Responding to the aforesaid submission made by the learned counsel for the appellant, learned counsel for the bank submitted that though Ms. Shalini Upadhyay, Advocate was present at the time of hearing on 04.09.2019 but she was not authorised to give any consent for re-auction of the property and unauthorisedly she gave no objection and consequently the bank has withdrawn her from this case as bank's counsel.

It is also submitted that though, officer of the bank Ms. Minali Chaudhary, Branch Manager, PNB was also present at that time and she is presented today also before this Tribunal and she had told the bank's counsel not to agree for a re-auction but her submission was not paid any heed.

When it was put to learned counsel for the appellant as well as for the bank that the legal position in such kind of a situation is that the aggrieved parties must go to the concerned court first with affidavits to have it recorded that wrong proceedings have been recorded to the detriment of the aggrieved persons, their submission was that they have not approached the learned Presiding Officer of the DRT-I, Delhi with any such affidavit.

In the aforesaid facts and circumstances, considering the fact that impugned order records the consent of all the parties, I am not inclined to grant the relief of injunction prays by the appellant as noted above.

A true copy of the order dated 17.09.2019 passed by the Ld. DRAT in Miscellaneous Appeal No. 382/2019 titled as Mamta Goyal vs Punjab National Bank & Ors. is annexed herewith and marked as ANNEXURE-P4.

That contrarily to the above-mentioned stand of the Respondent No.1 bank before Ld. DRAT, and for the reasons best known to the bank itself, without taking appropriate remedy against the order

dated 04.09.2019, the Respondent No.1 bank proceeded to conduct 2nd auction qua the subject properties in terms of the order dated 04.09.2019 of Ld. DRT vide the public auction dated 17.09.2019 ["2nd Auction"] at the reserve price of Rs.2.25 crores for the basement and ground floors portion and Rs.1.90 crores for first, second and third floors portion of the subject property. That pursuant to the 2nd auction, Mrs. Madhu Kharbanda was declared as the highest bidder with a bid amount of Rs. 4.17 Crores against the reserved price of Rs. 4.15 Crores in the 2nd auction and she also deposited 25% of the initial deposit in the sum of Rs. 1.05 Crores. A true copy of the 2nd auction notice dated 17.09.2019 is annexed herewith and marked as ANNEXURE- P5.

That it is pertinent to mention at this stage the mala fide intention of the Respondent No.1 Bank. Firstly, contrary to its own submissions before Ld. DRAT, the Respondent No. 1 proceeded to conduct 2nd auction of the property on 17.09.2019 in terms of the order of Ld. DRT dated 04.09.2019. Secondly, despite declaring Mrs. Madhu Kharbanda as the successful auction purchaser in the 2nd auction dated 17.09.2019, the Respondent No.1 Bank neither refunded the EMD / 25% of the sale consideration deposited by the Petitioner herein along with up to date accrued interest in terms of the same order of Ld. DRT dated 04.09.2019 nor withdrew the Sale confirmation Certificate issued to the Petitioner herein with respect to 1st auction of the subject properties no. 1 and 2. That this action of the Respondent No.1 Bank prima facie establishes its mala fide intent.

That being aggrieved by the order dated 17.09.2019 passed by the Ld. DRAT as well as the 2nd auction dated 17.09.2019 conducted by the Respondent No.1 bank herein, the Petitioner herein preferred a Writ Petition titled "Mamta Goyal vs Union Of India & Ors., Writ Petition (C) No. 10638/2019" before this Hon'ble Court wherein the notice was issued on 30.09.2019 and the fate of actions taken by the Respondent Bank including the fate of 2nd auction was made subject to final outcome of the Writ Petition. The relevant excerpt of the order passed by the Hon'ble court is reproduced herein for ease of reference:

"CM 43919/2019 (Stay)

5. All actions taken by the Respondents in the meanwhile, would be subject to the outcome of the present writ petition. The application is disposed of".

That during the pendency of the above-mentioned Writ Petition, Mrs. Madhu Kharbanda, who was the successful auction purchaser in the 2nd auction proceedings, filed an application seeking impleadment in the aforesaid Writ Petition and also for withdrawal from the 2nd auction and accordingly was allowed to withdraw from the 2nd auction and the Respondent Bank was directed to refund to Mrs. Madhu Kharbanda the aforesaid sum of Rs. 1.05 Crores together with the interest accrued thereon. Consequently, the challenge to the 2nd auction proceedings stood addressed. In light thereof, this Hon'ble Court vide order dated 19.12.2019 (hereinafter referred as the "Remand Order") disposed of the writ petition with the liberty as follows:

"9. The parties are now relegated to the Debt Recovery Tribunal-I ('DRT-I') before which notwithstanding the earlier order dated 4th September, 2019, the present Petitioner and other parties are at liberty to make fresh submissions as regards the need for any fresh auction. The DRT-I will pass orders afresh on the submission of the parties."

That following legal deduction can be retrieved from the perusal of the aforesaid extract:

That, the Ld. DRT-I, after hearing both the parties, would afresh decide whether there is a need to conduct any fresh auction or the 1st auction can be confirmed.

Admittedly, this Hon'ble Court, vide the said order, gave no observation regarding the confirmation of the 1st auction as it left it to the Ld. DRT-I to decide the same and accordingly remanded back the matter to the Ld. DRT.

A true copy of the Remand Order dated 19.12.2019 passed by this Hon'ble court in W.P. (C) No. 10638/19 is attached herewith and marked as ANNEXURE-P6.

That it is pertinent to mention here that the order dated 04.09.2019 of Ld. DRT was not passed on merits and the second auction was allowed to be conducted on the premise that another buyer of the applicant is offering higher amount than the bid amount given by highest bidder/Petitioner herein. It is clear from the order of Ld. DRT dated 04.09.2019 that the Ld. DRT had not adjudicated on the aspect of legality of the auction dated 22.08.2019. Thus, in no manner, the 1st auction could have been presumed to be confirmed in favour of the Petitioner by virtue of the Remand Order of this Hon'ble High court dated 19.12.2019. Thus, during the interregnum of awaiting the confirmation of the 1st auction by the Ld. DRT, the Petitioner herein could not deposit the remaining 75% of the Sale Consideration with the Respondent No.1 Bank nor the Respondent No.1 bank could have raised any such Demand for payment of the remaining 75% of the sale consideration prior to adjudication of the matter by the Ld. DRT.

That however without the 1st auction being confirmed by the Ld. DRT, Respondent No.1 bank raised an arbitrary demand vide letter dated 08.01.2020 (received by the Petitioner herein on 13th 14th January, 2020) [hereinafter referred as the "Demand Letter"], whereby Respondent No.1 Bank raised a frivolous demand for payment of rest 75% of the sale consideration without even the Ld. DRT deciding the matter as directed by this Hon'ble High Court vide its Remand Order dated 19.12.2019. The arbitrary demand raised vide the Demand Letter is as follows:

"As per order dated 19.12.2019 in W.P.(C) 16038/2019 & CM APPL. 54131/2019 since the second auction made in case of M/s Alliance Expotrade Pvt Ltd has been cancelled, you are therefore requested to deposit remaining 75% Bid Amount immediately failing which 25% amount will be forfeited."

A true Copy of the arbitrary Demand Letter dated 08.01.2020 issued by the Respondent No. 1 Bank to the Petitioner is attached herewith and marked as ANNEXURE-P7.

That in response to the above-mentioned arbitrary Demand Letter, the Petitioner herein vide Response dated 17.01.2020 categorically responded that the true purpose and categorical inference from the Remand Order by this Hon'ble High Court is that the Ld. DRT-I after hearing both the parties, would afresh decide, whether there is need to conduct any fresh auction or the 1st auction can be confirmed as this Hon'ble Court, vide the said order, gave no observation regarding the confirmation of the 1st auction as it left it to the Ld. DRT-I to decide the same and accordingly remanded back the matter to the Ld. DRT-I. A true copy of the Response of the Petitioner dated 17.01.2020 sent to Respondent No. 1 Bank is attached herewith and marked as ANNEXURE-P8.

That pertinently, the Petitioner herein was not a party before the Ld. DRT in SA No. 174/2019 (Now TSA 1033/2022). Thus, it was incumbent upon the Respondent No.1 bank to take appropriate steps to get the 1st auction confirmed by the Ld. DRT as the Petitioner herein did not have locus in the said SA.

That however, Respondent No. 1 Bank vide correspondence dated 12.02.2020 responded back and reiterated its arbitrary demand without giving any response to the legal issues raised by the Petitioner. Infact, the brazen high headedness of the bank is crystal clear from the fact that the Bank unilaterally declared that they would not conduct any fresh auction without even confirming the 1st auction in favour of the Petitioner and also threatened the Petitioner to deposit the balance 75% of the sale consideration immediately upon receipt of the notice failing which 25% of the amount deposited by the Petitioner would be forfeited. A true copy of the correspondence dated 12.02.2020 sent by the Respondent No. 1 bank to the Petitioner is attached herewith and marked as ANNEXURE-P9.

That having left with no other option, the Petitioner was constrained to respond back vide correspondence dated 14.02.2020 to the Bank that the Petitioner would approach the Ld. DRT-I at the earliest and that accordingly the Bank should refrain from proceeding further until adjudication by the Ld. DRT in light of the mandate/directive issued by this Hon'ble High Court vide the said Remand Order. A true copy of the correspondence dated 14.02.2020 sent by the Petitioner to Respondent No. 1 bank is attached herewith and marked as ANNEXURE- P10.

That accordingly, the Petitioner filed an I.A No.420/2020 in the Securitization Application seeking Impleadment as well as other directions with advance service to the Respondents. That on/around 12.03.2020, the Impleadment Application filed by the Petitioner came up for hearing, and notice was also issued in the said application. A true copy of the Impleadment Application bearing I.A No. 420/2020 filed by the Petitioner on 26.02.2020 is attached herewith and marked as ANNEXURE-P11.

That inspite of the Remand Order as well as various correspondences regarding the same, Respondent no.1 Bank vide correspondence dated 28.02.2020 [received by Petitioner on 03.03.2020] arbitrarily forfeited the earnest money (being 25% of the auction price) [hereinafter referred as the "forfeiture notice"] deposited at the time of 1st auction, which admittedly had been set aside and was yet to be confirmed by the Ld. DRT in light of the directive/mandate installed by this Hon'ble Court vide the Remand Order. Needless to say, the impleadment application had been filed prior to the forfeiture notice and advance copy of the same had also been supplied to the Respondents; however, despite receipt of the same, Respondent No.1 issued the forfeiture notice in an arbitrary and illegal manner. A true copy of the forfeiture notice dated 28.02.2020 issued by the Respondent No.1 Bank to the Petitioner is attached herewith and marked as ANNEXURE-P12.

That on/around 16.03.2020, accordingly left with no other option, the Petitioner was constrained to file an additional application bearing I.A. No. 533/2020 in the Securitization Application (hereinafter referred as the "Application against forfeiture notice") seeking appropriate directions against the forfeiture notice and placing additional documents on record in the said application. That owing to nationwide lockdown due to Covid-19 pandemic as well as vacant seat of the Presiding Officer at Ld. DRT-I Delhi, the arguments on application against forfeiture notice could not be heard in the meanwhile. A true copy of the Application against forfeiture notice bearing I.A No. 533/2020 in the Securitization Application is attached herewith and marked as ANNEXURE-P13.

That thereafter, vide order dated 24.02.2022 passed in SA/174/2019 (now TSA/1033/2022) the Impleadment Application of the Petitioner herein bearing IA No. 420/2022 was allowed by the Ld. DRT and the Petitioner herein was impleaded as one of the Respondents in the Securitization application. A true copy of the order dated 24.02.2022 passed by the Ld. DRT in SA/174/2019 (now TSA/1033/2022) is attached herewith and marked as ANNEXURE-P14.

That thereafter, arguments on Application of the Petitioner against forfeiture notice bearing I.A. No. 533/2020 was heard by the Ld. DRT on 28.02.2023 and 11.05.2023 vide which the Securitization Application bearing SA No. 74/2019 (now TSA No. 1033/2022) was reserved for Judgement. That the Judgement of Ld. DRT in SA No. 174/2019 (now TSA No. 1033/2022) was pronounced on 31.07.2023 which is manifestly arbitrary and contrary to the Remand Order dated 19.12.2019 passed by this Hon'ble High Court in W.P No. 10638/19 to the extent, where it fails to buttress any reasoning as to why the 1st Auction can't be confirmed and inspite of dismissing the SA and with categorical statements of the Bank that they do not intend to conduct any fresh auction, why the confirmation of 1st Auction wasn't feasible.

A true copy of the order dated 31.07.2023 passed by the Ld. DRT in SA No. 174/2019 (now TSA No. 1033/2022) is attached herewith and marked as ANNEXURE-P15.

That the relevant excerpt of the order dated 31.07.2023 passed by the Ld. DRT in SA No. 174/2019 (now TSA No. 1033/2022) is reproduced herein below for ease of reference:

"9.. Apparently, the respondent bank was permitted to conduct fresh auction qua the property in question and the liberty was given to the respondent no.2 to participate in the auction and the liberty was also given to the securitization applicant to bring his buyer to participate in the auction by depositing the EMD. This Tribunal vide order dated 04.09.2019 also clarified that the amount so deposited by the higher bidder, in auction conducted on 22.08.2019, i.e., respondent no.2 would be kept in no lien interest bearing account and the said highest was not require to deposit any EMD amount in the auction, which was taken place on 17.09.2019. From perusal of the aforesaid order 04.09.2019 it is clear that the auction conducted on 22.08.2019 was cancelled because as per the direction of this Tribunal the fresh/second auction was conducted by the respondent bank on

17.09.2019, though, the said auction was also stands cancelled because the Hon'ble High Court of Delhi, vide order dated 19.12.2019 permitted the highest bidder i.e. Mrs. Madhu Kharbanda to withdraw her bid with a direction to the respondent bank to refund the sum of Rs.1.05 crores to the said highest bidder. However, it has been submitted on behalf of the respondent bank has, on 28.02.2020, forfeited the 25% amount of the respondent no.2, but this Tribunal fails to understand as to why the respondent no.1 bank has forfeited the 25% money of the respondent no.2 when the issue of fresh auction as per the direction of Hon'ble High Court of Delhi is yet to be decided by this Tribunal. Even otherwise, there was no regular Presiding Officer in this Tribunal since 06.01.2020 and the undersigned has joined this Tribunal only on 01.11.2022. Accordingly, the action of the respondent bank for forfeiting the 25% money of the respondent no.2 is hereby set aside. Further, since, there is no auction as now today because the first and second auctions have already been cancelled, therefore, the respondent bank is hereby directed to proceed with the fresh auction qua the properties in question under the SARFAESI Act, 2002 in accordance with law and the respondent no.2 is hereby granted the liberty to participate in the said fresh auction. However, it is made clear that the respondent no.2 as now is not require to deposit any EMD amount in the fresh auction because she has already deposited 25% amount in the auction conducted on 22.08.2019 and the said amount is lying in no lien interest bearing account as per the order dated 04.09.2019 passed by this Tribunal. In case the respondent no.2 succeed in the fresh auction to be conducted by the respondent bank then she would deposit the amount as per rules. The securitization applicant will remain at liberty to bring his buyer to participate in the auction by depositing the EMD as per the terms & conditions of the bank.

10. With the aforesaid directions, the present securitization application is liable to be dismissed because the securitization applicant has failed to point any ambiguity, illegality or irregularity in respect of the actions / measures taken by the respondent bank SARFAESI Act, 2002 qua the property in question, accordingly, the same stands dismissed."

(emphasis supplied)

It is pertinent to mention here that though in para 10 of the order dated 31.07.2023, Ld. DRT held that there is no ambiguity, illegality or irregularity in respect of the actions/ measures taken by the Respondent Bank under the SARFAESI Act, 2002 qua the property in question however, instead of confirming the 1st auction, the Ld. DRT in para 9 of the said order erroneously directed the Respondent Bank to conduct a fresh auction qua the subject properties. That furthermore, though vide para 9 of the order dated 31.07.2023, Ld. DRT had set aside action of the respondent bank forfeiting the 25% money of the Petitioner herein, however failed to pass any direction for refund of the 25% Sale consideration amount deposited by the Petitioner herein with the Respondent Bank.

That for the sake of convenience, the relevant excerpt of the Remand order dated 19.12.2019 passed by this Hon'ble court in W.P No. 10638/19 is reiterated herein below:

"9. The parties are now relegated to the Debt Recovery Tribunal -I [DRT-I] before which, notwithstanding the earlier order dated 04.09.2019, the present Appellant and other parties are at liberty to make fresh submissions as regards the need for any fresh auction. The DRT-I will pass order afresh on the submission of the parties."

That a bare perusal of the remand order would make it clear that, admittedly, the Hon'ble High Court, vide the Remand order, had not confirmed the 1st Auction in favour of the Petitioner herein. The Hon'ble High Court had merely remanded back the matter to Ld. DRT to decide whether a fresh auction ought to be conducted or the 1st Auction has to be confirmed.

Thus, the glaring and inherent defects in the Order of Ld. DRT dated 31.07.2023 inter alia include: -

That the order dated 31.07.2023 erroneously considers the status of order of Ld. DRT dated 04.09.2019 as "active and in operation" in spite of the fact that pursuant to the remand order of this Hon'ble court, the order of the Ld. DRT dated 04.09.2019 had been made "dormant/ in-operative" and the status of 1st auction was retrieved as "active".

Admittedly, more than INR 1 crore of the Petitioner had been stuck with the Respondent No.1 bank as EMD/25% of the sale consideration for over 4 years (at the time of passing of the said order but approximately 7 years as on today) as the objections were being led by the Respondent no.2/Borrower. Once the securitization application stands dismissed on merits by the Ld. DRT; the case in favour of the Petitioner stands proved as all objections by the borrower/Respondent No.2 have been dispelled by the Ld. DRT.

That though the Ld. DRT vide its order dated 31.07.2023 has set aside the forfeiture action of the Respondent No.1 Bank, however the Ld. DRT failed to pass any consequent direction to the Respondent No.1 Bank to refund the EMD/25% of the sale consideration to the Petitioner (with/without interest). Thus, the order dated 31.07.2023 passed by the Ld. DRT is erroneous.

Without prejudice, the Petitioner/Auction Purchaser has been mandatorily made to participate in the new auction as directed vide the aforementioned order, for which no time limit has been stipulated. Furthermore, the aforementioned order further seems to be oblivion of the fact that more than INR 1 crore had remained stuck for over 4 years (at the time of passing of the said order but approximately 7 years as on today) over which precious opportunities had been lost by the Petitioner and thus no binding directions upon the Petitioner to mandatorily participate in the auction could have been passed.

That aggrieved by the order of the Ld. DRT dated 31.07.2023, the Petitioner herein filed an Appeal under section 18 of the SARFAESI Act, 2002 before the Ld. DRAT titled as "Mamta Goyal vs. Punjab National Bank & Ors., Regular Appeal No. 213/2023". That pertinently, in above-mentioned Regular Appeal No. 213/2023 before Ld. DRAT, notices were issued upon the Respondents vide order dated 19.09.2023. However, thereafter, the said Appeal has not come up for hearing till date due to which an amount more than INR 1 crore of the Petitioner still stands forfeited by the Respondent No.1 bank despite the said forfeiture being set aside by the Ld. DRT vide its order dated 31.07.2023.

A true copy of the Regular Appeal No. 213/2023 (without annexures) filed by the Petitioner before the Ld. DRAT is annexed herewith and marked as ANNEXURE-P16.

A true copy of the orders passed by the Ld. DRAT Delhi in Regular Appeal No. 213/2023 are annexed herewith and marked as ANNEXURE-P17 (COLLY.).

That against the said order of the Ld. DRT dated 31.07.2023, the Respondent No.1 Bank herein also filed an Appeal under section 18 of the SARFAESI Act, 2002 before the Ld. DRAT titled as "Punjab National Bank vs. & Shri Maninder Bedi Ors., Regular Appeal No. 271/2023". That pertinently, in above-mentioned Regular Appeal No. 271/2023 before Ld. DRAT, notices were issued upon the Respondents vide order dated 07.11.2023 and the said appeal was connected with the above-mentioned Regular Appeal of the Petitioner being Regular Appeal No. 213/2023. Thus, the said Appeal has also not come up for effective hearing till date. Pertinently the order of the Ld. DRT dated 31.07.2023 has not been stayed by the Ld. DRAT in any of the above appeals, however the Respondent No.1 Bank has never refunded the 25% of the Sale consideration amount in terms of the order dated 31.07.2023 of the Ld. DRT Delhi.

A true copy of the Regular Appeal No. 271/2023 (without annexures) filed by the Respondent No.1 bank before the Ld. DRAT is annexed herewith and marked as ANNEXURE-P18.

A true copy of the orders passed by the Ld. DRAT Delhi in Regular Appeal No. 271/2023 are annexed herewith and marked as ANNEXURE-P19 (COLLY.).

That at this stage it is also pertinent to mention that the Petitioner had also sent a Settlement Proposal dated 03.06.2024 to the Respondent No.1 bank and offered the Bank to refund to the Petitioner an amount of INR 1.45 crores (amount inclusive of principal and interest component till the date of above-mentioned Settlement Proposal dated 03.06.2024) and in exchange, the Petitioner being the Auction Purchaser/the Appellant in Appeal No.213/23 of Ld. DRAT, would withdraw its appeal in order to pave a way to conduct fresh auction qua the subject properties. However, despite acknowledging receipt of the same, the Respondent No.1 Bank never communicated its decision to the Petitioner which shows mala fide intention of the Respondent

No.1 Bank. A true copy of the Settlement Proposal dated 03.06.2024 sent by Petitioner to the Respondent No.1 bank with due acknowledgement of receipt is annexed herewith and marked as ANNEXURE-P20.

That the captioned Regular Appeal No.213 of 2023 preferred by the Petitioner and Regular Appeal No.271 of 2023 preferred by Respondent No.1 Bank arise out of the common order dated 31.07.2023 passed by the Ld. DRT-I, Delhi and were accordingly being heard together by the Ld. DRAT, Delhi. It is submitted that although notice in the aforesaid appeals had been issued on 19.09.2023 and 07.11.2023, respectively, both appeals remained pending without any effective hearing till 16.01.2025, when the Ld. DRAT merely re-notified the matters for 22.04.2025. Thus, being aggrieved by the inordinate delay and apprehending further prejudice on account of her substantial amount of ₹1.03 Crores remaining blocked since August 2019, the Petitioner was constrained to approach this Hon'ble Court by filing a Writ Petition bearing W.P.(C.) No.4931 of 2025 titled "Mamta Goyal vs. Punjab National Bank & Anr." before this Hon'ble Court, inter alia seeking following reliefs:

Direct the Respondent Bank to accept the balance 75% amount of the 1st auction dated 22.08.2019 and consequently issue the Sale Certificate and hand over possession of the subject auctioned properties to the Petitioner upon receipt of the balance Sale consideration amount;

In the alternative, direct the Respondent No.1 Bank to forthwith refund the deposited/forfeited 25% of the EMD/Sale consideration amount along with interest accrued thereon from the date of deposit till the date of actual payment;

In the alternative, direct the Ld. Debts Recovery Appellate Tribunal to expeditiously dispose of the Regular Appeal No. 213/2023 in a time-bound manner;

Pass any other or further order as this Hon'ble Court may deem fit and proper in the facts and the circumstances of the case.

That the said Writ Petition came up for consideration before this Hon'ble court on 21.04.2025, wherein vide order dated 21.04.2025, the Hon'ble court was not inclined to entertain the Petition and disposed of the same with liberty to the Petitioner to approach the Ld. DRAT Delhi and make a request for disposal of the appeal as expeditiously as possible.

The relevant para of the above-mentioned order dated 21.04.2025 passed by this Hon'ble Court in the above-mentioned Writ Petition is reproduced herein below for ease of reference:

"2. Material on record discloses that against the Order dated 04.09.2019, passed by the Debts Recovery Tribunal, an appeal has been filed by the Petitioner before the Debts Recovery Appellate Tribunal raising the same contentions as has been raised in the present Petition.

3. In view of the fact that the Debts Recovery Appellate Tribunal is in seisin of the matter, this Court is not inclined to entertain the present Petition.

4. The Petitioner may, if so chosen, approach the Debts Recovery Appellate Tribunal and make a request for disposal of the appeal as expeditiously as possible.

5. With these observations, the Writ Petition is disposed of, along with pending applications, if any.

6. It is made clear that this Court has not made any observations on the merits of the case."

A true copy of the W.P.(C) No. 4931/2025 titled Mamta Goyal Vs. Punjab National Bank & Anr. filed by the Petitioner before this Hon'ble Court in April, 2025 is annexed herewith and marked as ANNEXURE-P21.

A true copy of the order dated 21.04.2025 passed by this Hon'ble Court in W.P.(C) No. 4931/2025 titled Mamta Goyal Vs. Punjab National Bank & Anr. is annexed herewith and marked as ANNEXURE-P22.

That pursuant to the liberty granted by this Hon'ble Court, the Petitioner diligently pursued the proceedings before the Ld. DRAT-Delhi. That On 22.04.2025, the appeals could not be taken up as the Ld. Chairperson, DRAT, Delhi was on leave and the appeals were merely re-notified to

26.05.2025. That again on 26.05.2025, owing to paucity of time, the appeals were simply adjourned to 04.07.2025 without any effective hearing.

That it is respectfully submitted that the Ld. DRAT Delhi had, on 04.07.2025, heard the detailed arguments advanced by all parties and was pleased to reserve the matter for pronouncement of judgment on 21.07.2025. The Petitioner, through counsel, had duly filed her written arguments on 16.07.2025, while the Ld. Counsel for Respondent No. 1 was granted three days' time to file their written submissions.

A true copy of the Written Arguments dated 16.07.2025 filed by the Petitioner before the Ld. DRAT in Regular Appeal No. 213/2023 is annexed herewith and marked as ANNEXURE-P23.

That thereafter, vide order dated 07.08.2025, the matter was listed for clarification on 08.10.2025 and notices were issued to all parties. However, on the said date, it was informed that the then Hon'ble Chairperson had demitted office on 11.08.2025, and consequently, the matter could not be taken up for hearing on 08.10.2025 and thereafter on 19.12.2025 wherein the Appeal was re-notified for 30.01.2026.

That at this stage it is pertinent to mention here that after demitting of office by Ld. Chairperson, DRAT-Delhi, Ld. Chairperson, DRAT-Kolkata was holding additional charge of Ld. DRAT Delhi. That vide Public Notice dated 19.09.2025, bearing Ref. No. F. No.11/5/2024/DRAT/Delhi, Ld. Chairperson, DRAT, Kolkata (Additional Charge, DRAT, Delhi), in continuation of earlier Public Notice of even number dated 22.08.2025, directed all litigants/advocates that all the praecipes filed before the Ld. DRAT Delhi upto 3 P.M for urgent hearing of the matters will be taken up by the Ld. Chairperson, DRAT-Kolkata for consideration the next day. That thereafter, vide subsequent Public Notice dated 12.01.2026 bearing Ref. No.11/5/2020/DRAT/Delhi, it was informed that the Ld. Chairperson, DRAT-Kolkata (holding additional charge of DRAT, Delhi) will be holding court for hearing the matters from 14th January, 2026 at the premises of Ld. DRAT-Delhi. A true copy of the Public Notice dated 19.09.2025, bearing Ref. No. F. No.11/5/2024/DRAT/Delhi and subsequent Public Notice dated 12.01.2026 bearing Ref. No.11/5/2020/DRAT/Delhi are annexed herewith and marked as ANNEXURE-P24 (COLLY.).

That immediately upon issuance of the aforesaid Public Notices, the Petitioner, in bona fide pursuit of the liberty granted by this Hon'ble Court, filed a Praecipe dated 13.01.2026 in Regular Appeal No. 213/2023 requesting either preponement of the Appeal or hearing on the already fixed date i.e., 30.01.2026 either at Ld. DRAT-Delhi or at Ld. DRAT-Kolkata as per the convenience of Ld. Chairperson (having additional charge). The Petitioner specifically highlighted that an amount of **■1.03 Crore**, deposited in August 2019, continued to remain blocked solely because of pendency of judicial proceedings. However, the said Praecipe of the Petitioner was not allowed by the Ld. Chairperson, DRAT-Kolkata (having additional charge of Ld. DRAT-Delhi).

A true copy of the Praecipe dated 13.01.2026 filed by the Petitioner herein before the Ld. DRAT Delhi in Regular Appeal No. 213/2023 is annexed herewith and marked as ANNEXURE-P25.

That subsequently, the appeals were successively adjourned from 30.01.2026 to 27.02.2026 and thereafter to 02.04.2026, without any effective hearing.

That in the meanwhile, the additional charge of Ld. DRAT-Delhi was transferred to the Ld. Chairperson, DRAT-Chennai, therefore on 23.03.2026, the Petitioner herein filed another application bearing I.A. No. _____ of 2026 in Regular Appeal No. 213 of 2023 under Section 19(25) of the Recovery of Debts and Bankruptcy Act, read with the Debts Recovery Appellate Tribunal (Procedure) Rules, 1994, seeking appropriate directions in respect of the date fixed in Regular Appeal No. 213 of 2023, and praying that the same be listed for hearing before the Ld. DRAT, Chennai on the date fixed i.e., 02.04.2026 since the Petitioner's hard-earned monies of over Rs. 1 Crore was stuck ever since the year 2019. However, before the said application could be considered, the Department of Financial Services issued a notification dated 01.04.2026 announcing appointment of the new Chairperson of Ld. DRAT, Delhi and the charge was to be assumed immediately or within a period of 30 days i.e., till 30.04.2026. Thus, the above-mentioned application could not be pressed by the Petitioner herein. Thus on 02.04.2026, the Regular Appeal

No. 213/2023 was simply re-notified to 21.07.2026.

A true copy of the application dated 23.03.2026 filed by the Petitioner before the Ld. DRAT Delhi bearing I.A. No./_____/2026 in Regular Appeal No. 213/2023 is annexed herewith and marked as ANNEXURE-P26.

A true copy of the Public Notice dated 01.04.2026 issued by Department of Financial Services is annexed herewith and marked as ANNEXURE-P27.

That accordingly, after appointment of the new Chairperson at DRAT-Delhi, the Petitioner filed another application dated 06.05.2026 before the Ld. DRAT Delhi bearing I.A. No./1055/2026 in Regular Appeal No. 213/2023 under Section 19(25) of the Recovery of Debts and Bankruptcy Act, read with the Debts Recovery Appellate Tribunal (Procedure) Rules, 1994, seeking appropriate directions in respect of the date fixed in the said Regular Appeal and praying that the same be listed for hearing in the first 20 matters and/or alternatively to fix a specific time for hearing the Appeal on the date fixed i.e., 21.07.2026, since the Petitioner's hard-earned monies of over Rs. 1 Crore was stuck ever since the year 2019. However, no order was passed by the Ld. DRAT on the said application.

A true copy of the application dated 06.05.2026 filed by the Petitioner before the Ld. DRAT Delhi bearing I.A. No./1055/2026 in Regular Appeal No. 213/2023 is annexed herewith and marked as ANNEXURE-P28.

That despite all efforts made by the Petitioner and despite the liberty granted by this Hon'ble Court in April 2025, the Regular appeal again could not be heard on 21.07.2026 due to paucity of time and was merely adjourned to 24.09.2026, leading to prolonged delay in adjudication, without any fault attributable to the Petitioner. It is respectfully submitted that although arguments had concluded as far back as 04.07.2025, and written submissions had been filed on 16.07.2025, the appeal remains undecided for more than one year thereafter for reasons wholly beyond the Petitioner's control. The Petitioner continues to suffer grave prejudice since an amount of ₹1.03 Crores deposited in August 2019 remains blocked, while the subject property also continues to remain beyond her reach. These circumstances constitute a fresh and independent cause of action necessitating invocation of the extraordinary jurisdiction of this Hon'ble Court.

Thus, being aggrieved by the forfeiture action of the Respondent No.1 Bank, order of the Ld. DRT Delhi dated 31.07.2023 as well as inaction of the Ld. DRAT Delhi in above-mentioned appeals, the Petitioner is constrained to move the present Petition humbly seeking following reliefs:

Direct the Ld. Debts Recovery Appellate Tribunal, New Delhi to expeditiously dispose of the Regular Appeal No. 213/2023 in a time-bound manner;

In the alternative, direct the Respondent Bank to accept the balance 75% amount of the 1st auction dated 22.08.2019 and consequently issue the Sale Certificate and hand over possession of the subject auctioned properties to the Petitioner upon receipt of the balance Sale consideration amount;

In the alternative, direct the Respondent No.1 Bank to forthwith refund the deposited/forfeited 25% of the EMD/Sale consideration amount along with interest accrued thereon from the date of deposit till the date of actual payment.

That the present writ petition is being filed by the Petitioner on the grounds mentioned below:

GROUND

BECAUSE that the Petitioner has preferred an appeal before the Hon'ble Debts Recovery Appellate Tribunal (DRAT), New Delhi, challenging the Order dated 31.07.2023 passed by the Ld. DRT-I. However, despite the urgency and financial implications involved, the Hon'ble DRAT has not been hearing the matter effectively, and it has been repeatedly adjourned without any substantial proceedings.

BECAUSE the Petitioner has scrupulously complied with the liberty granted by this Hon'ble Court vide order dated 21.04.2025 by repeatedly approaching the Ld. DRAT through praecipes and applications, yet the appeal has remained pending for reasons entirely beyond the Petitioner's

control. Consequently, a fresh cause of action has arisen.

BECAUSE the Regular Appeal was fully argued on 04.07.2025 and 21.07.2025, written arguments were filed on 16.07.2025, and the matter was reserved for judgment. Thereafter, solely because of administrative circumstances, including demitting of office by the erstwhile Ld. Chairperson and repeated transfers of additional charge, the appeal has remained undecided. Such prolonged pendency defeats the Petitioner's valuable statutory remedy under Section 18 of the SARFAESI Act.

BECAUSE due to the continuous adjournments and non-adjudication of the appeal before the Hon'ble DRAT, the Petitioner is suffering irreparable financial hardships and legal prejudice, as the Earnest Money Deposit of Rs. 1.03 Crores remains stuck with the Bank for over seven years. This prolonged delay is causing grave injustice, as the Petitioner is being deprived of either the confirmation of the 1st auction or the refund of the EMD with interest. Such prolonged deprivation of property and money without adjudication is arbitrary and violative of Articles 14 and 300A of the Constitution.

BECAUSE the undue delay in the disposal of the appeal pending before the Hon'ble DRAT is causing irreparable harm to the Petitioner. The delay directly impacts the Petitioner's rights over its forfeited EMD/partial sale consideration amount as well as the property in question, thereby necessitating an expeditious adjudication.

BECAUSE that the Hon'ble DRAT's failure to hear and decide the appeal in a time-bound manner is contrary to the principles of natural justice and results in denial of effective remedy to the Petitioner, forcing her to invoke the extraordinary writ jurisdiction of this Hon'ble Court.

BECAUSE That it is settled law that appellate forums must decide cases expeditiously, particularly where significant financial stakes and property rights are involved. The unwarranted delay in disposal of the appeal is effectively rendering the Petitioner's rights illusory and infructuous, warranting immediate intervention of this Hon'ble Court.

BECAUSE justice delayed in the present case effectively amounts to justice denied. The subject matter concerns rights arising from an auction conducted in August, 2019. Every passing day alters the commercial and equitable rights of the parties and causes irreparable prejudice to the Petitioner.

BECAUSE this Hon'ble Court, in exercise of its supervisory jurisdiction under Article 227 of the Constitution, is fully empowered to issue appropriate directions to ensure expeditious disposal of proceedings pending before subordinate tribunals where delay frustrates the statutory remedy.

BECAUSE, vide Order dated 31.07.2023, the Ld. DRT-I failed to appreciate the true purport of the Remand Order dated 19.12.2019 passed by this Hon'ble High Court, which specifically directed a fresh consideration of whether the 1st auction needed confirmation or a fresh auction was required. However, the Ld. DRT mechanically proceeded without independently assessing the same, thereby violating the Remand Order passed by this Hon'ble court.

BECAUSE the Order dated 31.07.2023 erroneously presumes the status of the 1st auction without conducting a proper examination as per the directive of the Remand Order. Despite the clear direction to reconsider the need for a fresh auction or confirm the 1st auction, the Ld. DRT failed to render a reasoned decision.

BECAUSE the Ld. DRT traversed on an erroneous premise that the Order dated 04.09.2019 is still operative and that the 1st Auction remains cancelled. Thus, it seems that owing to such erroneous presumption contrary to records and the Remand Order, the Ld. DRT did not discuss the possibilities of confirmation of auction in favour of the Petitioner and thus no reasoning seems to have been advanced vide the Order dated 31.07.2023.

BECAUSE the orders dated 04.09.2019 and 31.07.2023 passed by the Ld. DRT are erroneous and perverse to the law. It is well established law that once the Sale is confirmed, it becomes absolute

and therefrom the title vests in the auction purchaser. The Hon'ble Supreme Court in Judgement dated 13.12.2024 titled "Celir LLP v. Sumati Prasad Bafna, 2024 SCC OnLine SC 3727" held as follows:

"iv. Circumstances when a sale of property by auction or other means under the SARFAESI Act may be set-aside after its confirmation.

210. We must also address one very important aspect as regards when the sale of secured asset either by auction or any other method under the SARFAESI Act may be challenged or set-aside after its confirmation.

....

212. In LICA (P) Ltd. v. Official Liquidator, (1996) 85 Comp Cas 788 (SC) this Court held that the purpose of an open auction is to get the most remunerative price with the highest possible public participation, and as such the courts shall exercise their discretion to interfere where the auction suffers from any fraud or inadequate pricing or underbidding that too with circumspection, keeping in view the facts of each case. The relevant observations read as under:—

"The purpose of an open auction is to get the most remunerative price and it is the duty of the court to keep openness of the auction so that the intending bidders would be free to participate and offer higher value. If that path is cut down or closed the possibility of fraud or to secure inadequate price or underbidding would loom large. The court would, therefore, have to exercise its discretion wisely and with circumspection and keeping in view the facts and circumstances in each case."

(Emphasis supplied)

....

214. In Ram Kishun v. State of Uttar Pradesh reported in (2012) 11 SCC 511 this Court although held that where public money is to be recovered such recovery should be done expeditiously, yet the same must be done strictly in accordance with the procedure prescribed by law. However, this Court after examining a plethora of other decisions further held that once the sale has been confirmed it cannot be set aside unless a fundamental procedural error has occurred or sale certificate had been obtained by misrepresentation or fraud. The relevant observations read as under:—

"13. Undoubtedly, public money should be recovered and recovery should be made expeditiously. But it does not mean that the financial institutions which are concerned only with the recovery of their loans, may be permitted to behave like property dealers and be permitted further to dispose of the secured assets in any unreasonable or arbitrary manner in flagrant violation of the statutory provisions.

xxx xxx xxx

28. In view of the above, the law can be summarised to the effect that the recovery of the public dues must be made strictly in accordance with the procedure prescribed by law. The liability of a surety is coextensive with that of the principal debtor. In case there are more than one surety the liability is to be divided equally among the sureties for unpaid amount of loan. Once the sale has been confirmed it cannot be set aside unless a fundamental procedural error has occurred or sale certificate had been obtained by misrepresentation or fraud."

(Emphasis supplied)

215. In PHR Invent Educational Society v. UCO Bank, (2024) 6 SCC 579 it was again reiterated that an auction-sale which stands confirmed can only be interfered with when there was any fraud or collusion, and entertaining of issues regarding the validity of such auction would amount to reopening issues which have achieved finality. The relevant observations read as under:—

"34. In our view, the High Court ought to have taken into consideration that the confirmed auction-sale could have been interfered with only when there was a fraud or collusion. The present

case was not a case of fraud or collusion. The effect of the order of the High Court would be again reopening the issues which have achieved finality.”

....

218. Any sale by auction or other public procurement methods once already confirmed or concluded ought not to be set-aside or interfered with lightly except on grounds that go to the core of such sale process, such as either being collusive, fraudulent or vitiated by inadequate pricing or underbidding. Mere irregularity or deviation from a rule which does not have any fundamental procedural error does not take away the foundation of authority for such proceeding. In such cases, courts in particular should be mindful to refrain entertaining any ground for challenging an auction which either could have been taken earlier before the sale was conducted and confirmed or where no substantial injury has been caused on account of such irregularity.

From above it is clear that upon confirmation of the 1st auction, the same could not have been set aside except on the grounds as stated in the above-mentioned judgments. Pertinently, in para 10 of the order dated 31.07.2023, the Ld. DRT held that there is no ambiguity, illegality or irregularity in respect of the actions/ measures taken by the Respondent Bank under the SARFAESI Act, 2002 qua the property in question, therefore, the Ld. DRT should have confirmed the 1st auction in light of the above-mentioned Judgments. However, instead of confirming the 1st auction, the Ld. DRT in para 9 of the said order dated 31.07.2023 erroneously directed the Respondent Bank to conduct a fresh auction qua the subject properties which is arbitrary and perverse to the above-mentioned judgements. In light of the same the order of Ld. DRT dated 31.07.2023 is liable to be set aside to the extent of directing a fresh auction by the Respondent No.1 Bank.

BECAUSE the Order dated 31.07.2023 erroneously mandates the Petitioner to participate in another auction without acknowledging that the Petitioner had already suffered financial losses and had its EMD stuck for over four years. The Ld. DRT's decision effectively negates the Petitioner's right to confirmation of the 1st auction without valid reasoning.

BECAUSE admittedly, the Order dated 31.07.2023 dismissed the Securitization Application of the Borrower on merits finding no fault qua the Auction Process. Admittedly, the Bank gave an unequivocal and categorical stand that they do not wish nor would want to conduct further auction. Admittedly, vide the Remand Order, the operation of Order dated 04.09.2019 had been frozen, implying that the 1st Auction remained active, and the Ld. DRT can confirm the 1st Auction in favour of the Petitioner. Admittedly, more than 1 cores of the Petitioner had been stuck for approximately 7 years owing to the nefarious litigation. Thus, without prejudice, even if a fresh auction was to be conducted, the money ought to be returned back to the Petitioner and participation in the fresh auction, if any, should have been left to the choice/personal volition of the Petitioner. Thus, instead of confirming the auction in favour the Petitioner, the Petitioner has been directed to a painful process of re-participating a proposed auction for which also no time period had been stipulated and also Petitioner's money has again been stuck in the rigamarole of auction process.

BECAUSE the Respondent Bank has categorically stated that it does not intend to conduct any fresh auction. Therefore, the failure of the Ld. DRT-I to confirm the 1st auction, despite the Borrower's objections being dismissed, is wholly arbitrary and without legal basis.

BECAUSE the Petitioner, being the successful auction purchaser in the 1st auction, had a legitimate expectation that the 1st auction would be either confirmed or rejected based on legal reasoning. However, the Order dated 31.07.2023 though dismissed the SA as well as objections of the Respondent No.2/borrower, but neither confirmed nor rejected the 1st auction but directed the Respondent Bank to conduct a fresh auction, leaving the Petitioner in an indefinite and prejudicial position.

BECAUSE the Securitization Application stands dismissed on merits and all objections taken by the Borrower against the Petitioner stands rejected. Pertinently, the Respondent No.1 Bank time and again confirmed that it no longer wants to conduct the fresh auction. Thus, constructively even the bank has accorded its interest in the confirmation of 1st Auction. The Remand Order gives a

categorical direction to the Ld. DRT-1 to hear the version of parties and decide the fate of 1st auction. In this light, once Borrower's contentions are dismissed on merits, the Bank no more intends to conduct fresh auction and that the Petitioner's more than 1 crores had remain stuck in the transaction for approximately 7 years; it is the Petitioner in whose favor the 1st Auction ought to have been confirmed by the Ld. DRT-1.

BECAUSE in view of the above, it is evident that the Order dated 31.07.2023 has been passed by the Ld. DRT without due consideration and there must have been due application of mind by the Application filed by the Petitioner the failure of which has caused grave injustice to the Petitioner.

BECAUSE despite the fact that the Petitioner has deposited more than INR 1 crore with the Respondent Bank for over four years, the Ld. DRT-I failed to pass any conclusive directions on the confirmation of the 1st auction. This has led to unwarranted financial hardship and undue delay, prejudicing the rights of the Petitioner.

BECAUSE though the Ld. DRT vide its order dated 31.07.2023 has set aside the forfeiture action of the Respondent No.1 Bank, however the Ld. DRT failed to pass any consequent direction to the Respondent No.1 Bank to refund the EMD/25% of the sale consideration to the Petitioner (with/without interest). Thus, the order dated 31.07.2023 passed by the Ld. DRT is erroneous.

BECAUSE The Bank's demand for the remaining 75% of the sale consideration, as per the Demand Letter, was premature and unjustified. The Remand Order had specifically placed the matter before the Ld. DRT-I to decide the fate of the auction. The Bank's demand, made before the DRT's decision, was based on the assumption that the 1st auction was automatically confirmed, which was not the case. The Petitioner was justified in not depositing the balance amount until the legal status of the auction was clarified by the DRT.

BECAUSE The forfeiture of the EMD/25% of the sale consideration amount was carried out in direct contravention of the spirit and intent of the Remand Order dated 19.12.2019 passed by the Hon'ble Delhi High Court in W.P. (C) No. 10638/19. The Remand Order specifically directed the Ld. DRT-I to re-examine the need for a fresh auction or confirmation of the 1st auction. The Respondent No.1 Bank, however, prematurely forfeited the EMD/25% of the Sale Consideration amount before the Ld. DRT-I had made a final determination on the validity of the 1st auction. This action effectively pre-judged the outcome of the proceedings before the Ld. DRT and deprived the Petitioner of its right and contentions before the Ld. DRT in terms of the Remand Order of this Hon'ble Court dated 19.12.2019. Pertinently, the subsequent order of the Ld. DRT dated 31.07.2023, while setting aside the forfeiture, further underscores the illegality of the Bank's action.

BECAUSE the Respondent Bank arbitrarily and illegally forfeited the Petitioner's earnest money deposit/25% of the Sale consideration amount vide forfeiture notice dated 28.02.2020, despite the fact that the status of confirmation of 1st auction was pending adjudication by the Ld. DRT. This forfeiture was done without any adjudication by the Ld. DRT-I, which is contrary to the mandate of the Remand Order of this Hon'ble court dated 19.12.2019.

BECAUSE at all times, the Petitioner was ready with the balance 75% Sale consideration and was seriously interested in buying the subject properties, however due to pending litigations and pendency of confirmation of the 1st auction, the Petitioner herein could not deposit the amount.

BECAUSE the Respondent Bank has been acting arbitrarily against the Petitioner. That vide the order dated 04.09.2019, the Ld. DRT had directed that the amount deposited by the highest bidder i.e., the Petitioner herein, in auction conducted on 22.08.2019 would be kept in no lien interest bearing account. It was also held that in case the Petitioner herein is also allowed to participate in the 2nd auction dated 17.09.2019 and in case the Petitioner herein could not compete other bidder in the 2nd auction, then his amount would be refunded by the respondent bank immediately with interest, if any. Pertinently, Mrs. Madhu Kharbanda was declared as the highest bidder in the 2nd auction, but the Respondent No.1 flouted the order passed by the Ld. DRT dated 04.09.2019 and did not refund the EMD/25% Sale consideration amount deposited by the Petitioner. Thereafter, in W.P. (C) No. 10638/19 before this Hon'ble Court on 19.12.2019, the Respondent No.1 Bank also

agreed to cancel the 2nd auction and refund the EMD of Mrs. Madhu Kharbanda. However, the Respondent No.1 ignored the fact that vide the same Remand Order dated 19.12.2019, this hon'ble court had directed the Ld. DRT for a fresh consideration of issue that whether the 1st auction needed confirmation or a fresh auction was required. However, without waiting for adjudication of the issue by Ld. DRT, the Respondent No.1 Bank proceeded to forfeit the amount deposited by the Petitioner. Pertinently, vide the order dated 31.07.2023, said action of the Respondent Bank for forfeiting the 25% money of the Petitioner herein was also set aside. However, instead of refunding the amount, the Respondent No.1 Bank filed an appeal where no stay has been granted in favour of the Petitioner, however till date the amount of the Petitioner stands forfeited by the Bank. This establishes mala fide intention and arbitrary actions of the Respondent No.1 bank against the Petitioner.

BECAUSE the Hon'ble Supreme Court in Judgement dated 02.02.2024 titled "Authorised Officer, Central Bank of India vs. Shanmugavelu (2024) 6 SCC 641" held as follows:

(iv) Whether any exceptional circumstances exist to set aside the forfeiture of the earnest money deposit?

115. The last aspect which remains to be determined is whether any exceptional circumstances exist to set aside the forfeiture of the respondent's earnest money deposit?

116. This Court in its decision in Alisha Khan v. Indian Bank (Allahabad Bank), 2021 SCC OnLine SC 3340 had directed the refund of the earnest money deposit after forfeiture to the successful auction-purchaser who was unable to pay the balance amount on account of the Pandemic. The relevant observations are being reproduced below:

"3. Having gone through the impugned judgment and orders passed by the High Court, we are of the opinion that the High Court ought to have allowed the refund of the amount deposited being 25% of the auction-sale consideration. Considering the fact that though initially the appellant deposited 25% of the auction-sale consideration, however, subsequently she could not deposit balance 75% due to Covm-19 Pandemic. It is required to be noted that subsequently the fresh auction has taken place and the property has been sold. It is not the case of the respondents that in the subsequent sale, lesser amount is received. Thus, as such, there is no loss caused to the respondents.

4. Considering the aforesaid facts and circumstances, we allow these appeals and set aside the order of forfeiture of 25% of the amount of auction-sale consideration and direct the respondent Bank to refund/return the amount earlier deposited by the appellant, deposited as the part auction-sale consideration (minus 50,000 towards the expenditure which were required to be incurred by the respondent Bank for conducting the fresh auction) within a period of four weeks from today."

117. In C. Natarajan (supra), this Court while affirming the decision of Alisha Khan (supra) observed that after the earnest money deposit is forfeited, the courts should ordinarily refrain from interfering unless the existence of very rare and exceptional circumstances are shown. The relevant observations read as under:

"18. ... If, however, circumstances are shown to exist where a bidder is faced with such a grave disability that he has no other option but to seek extension of time on genuine grounds so as not to exceed the stipulated period of ninety days and the prayer is rejected without due consideration of all facts and circumstances, refusal of the prayer for extension could afford a ground for a judicial review of the decision-making process on valid ground(s). One such exceptional circumstance led to the decision in Alisha Khan v. Indian Bank (Allahabad Bank) [2021 SCC OnLine SC 3340], where this Court intervened and granted relief because, due to COVID complications, the appellant had failed to pay the balance amount.

XXXX

33. The up-shot of the aforesaid discussion is that whenever a challenge is laid to an order of forfeiture made by an authorized officer under sub-rule (5) of rule 9 of the Rules by a bidder, who has failed to deposit the entire sale price within ninety days, the tribunals/courts ought to be extremely reluctant to interfere unless, of course, a very exceptional case for interference is set up. What would constitute a very exceptional case, however, must be determined by the tribunals/courts on the facts of each case and by recording cogent reasons for the conclusion reached

34. Insofar as challenge to an order of forfeiture that is made upon rejection of an application for extension of time prior to expiry of ninety days and within the stipulated period is concerned, the scrutiny could be a bit more intrusive for ascertaining whether any patent arbitrariness or unreasonableness in the decision-making process has had the effect of vitiating the order under challenge. However, in course of such scrutiny, the tribunals/courts must be careful and cautious and direct their attention to examine each case in some depth to locate whether there is likelihood of any hidden interest of the bidder to stall the sale to benefit the defaulting borrower and must, as of necessity, weed out claims of bidders who instead of genuine interest to participate in the auctions do so to rig prices with an agenda to withdraw from the fray post conclusion of the bidding process. In course of such determination, the tribunals/courts ought not to be swayed only by supervening events like a subsequent sale at a higher price or at the same price offered by the defaulting bidder or that the secured creditor has not in the bargain suffered any loss or by sentiments and should stay at a distance since extending sympathy, grace or compassion are outside the scope of the relevant legislation.

35. In any event, the underlying principle of least intervention by tribunals/courts and the overarching objective of the SARFAESI Act duly complimented by the Rules, which are geared towards efficient and speedy recovery of debts, together with the interpretation of the relevant laws by this Court should not be lost sight of. Losing sight thereof may not be in the larger interest of the nation and susceptible to interference.”

118. Thus, this Court held that where extraneous conditions exist that might have led to the inability of the successful auction purchaser despite best efforts from depositing the balance amount to no fault of its own, in such cases the earnest-money deposited by such innocent successful auction purchaser could certainly be asked to be refunded.

In light of the aforementioned Judgement, it is stated that in the peculiar facts and circumstance of the present case, extraneous conditions i.e., pending litigations and also the pendency of confirmation of the 1st auction existed, therefore, the Petitioner could not deposit the balance 75% sale consideration amount i.e., more than Rs. 3 Crores despite being ready with the said amount, in light of the fact that the Securitization Application of the Respondent No.2/borrower was still pending. Thus, premature action of the forfeiture by the Respondent Bank is arbitrary and liable to be set aside and the Petitioner is entitled for refund of its EMD/25% of the Sale Consideration amount along with accrued interest till date of actual payment in accordance with the aforesaid Judgement of the Hon'ble Apex court.

BECAUSE the Petitioner has been deprived of its huge money which stands forfeited by the Respondent No. 1 Bank as well as possession of the auctioned subject properties despite having successfully bid for it. The non-adjudication of the status of 1st auction has resulted in economic loss to the Petitioner due to the delay, loss of opportunities, and forfeiture of funds, warranting immediate intervention by this Hon'ble Court.

BECAUSE that in view of the failure of the Hon'ble DRAT to effectively hear the matter, the Petitioner has been left with no alternative remedy but to approach this Hon'ble High Court under its writ jurisdiction to seek expeditious disposal of the appeal or alternative reliefs.

That there is no delay in filing this petition in as much as the Appeals concerning the present dispute is pending before the Ld. Debts Recovery Appellate Tribunal, Delhi since 2023. The Petitioner has diligently exhausted every available remedy by repeatedly approaching the Ld.

DRAT through praecipes and interim applications seeking expeditious disposal. Nevertheless, the Appeals continue to remain pending solely on account of institutional and administrative circumstances. Thus, the Petitioner is left with no other efficacious remedy but to invoke the extraordinary jurisdiction of this Hon'ble Court to ensure that justice is served and the Petitioner's legitimate rights are protected.

The Petitioner has not filed any other petition either before this Hon'ble Court or in the Hon'ble Supreme Court of India.

That the Petitioner craves leave of this Hon'ble Court to add, alter and/or amend the Petition.

PRAYER

It is therefore, most respectfully prayed that this Hon'ble Court may graciously be pleased to:

Direct the Ld. Debts Recovery Appellate Tribunal to expeditiously dispose of the Regular Appeal No. 213/2023 in a time-bound manner;

In the alternative, direct the Respondent Bank to accept the balance 75% amount of the 1st auction dated 22.08.2019 and consequently issue the Sale Certificate and hand over possession of the subject auctioned properties to the Petitioner upon receipt of the balance Sale consideration amount;

In the alternative, direct the Respondent No.1 Bank to forthwith refund the deposited/forfeited 25% of the EMD/Sale consideration amount along with interest accrued thereon from the date of deposit till the date of actual payment;

Pass any other or further order as this Hon'ble Court may deem fit and proper in the facts and the circumstances of the case.

PETITIONER

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

E-mail: adv@ronniebrara.com

Date: .08.2026

Place: Delhi

IN THE HON'BLE HIGH COURT OF DELHI AT NEW DELHI

(CIVIL WRIT JURISDICTION)

WRIT PETITION (CIVIL) NO. _____ OF 2026

IN THE MATTER OF:

MAMTA GOYALPETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR.RESPONDENTS

AFFIDAVIT

I, Mamta Goyal, aged about 43 years, W/o Sh. Deepak Goyal, R/o C - 37A, Inderpuri, New Delhi-110021, do hereby solemnly affirm and state on oath as under:

That the Deponent is the Petitioner and is conversant with the facts of the case and as such competent to swear and file this affidavit.

That the contents of the accompanying Petition are true and correct and certain paras of the Petition are believed to be true and correct on legal advice received and may kindly be read as part of the present affidavit, the same are not being repeated herein for the sake of brevity.

The documents annexed with the present Petition are true copies of their respective originals.

DEPONENT

VERIFICATION:

Verified at Delhi on this _____ date of August, 2026 that the contents of the above affidavit are true to my knowledge based on records and nothing material has been concealed.

DEPONENT

IN THE HON'BLE HIGH COURT OF DELHI AT NEW DELHI

(CIVIL WRIT JURISDICTION)

CIVIL MISC. APPLICATION NO. _____ OF 2025

IN

WRIT PETITION (CIVIL) NO. _____ OF 2026

IN THE MATTER OF:

MAMTA GOYALPETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR.RESPONDENTS

APPLICATION UNDER SECTION 151 OF THE CIVIL PROCEDURE CODE, 1908 SEEKING STAY OF THE ORDER DATED 31.07.2023 PASSED BY THE LD. DRT IN S.A NO. 174 OF 2019 (NOW TSA No. 1033 of 2022) AND DIRECTIONS TO THE RESPONDENT NO.1 BANK TO REFRAIN FROM TAKING ANY COERCIVE ACTION AGAINST THE PETITIONER

MOST RESPECTFULLY SHOWETH:

That the Petitioner has filed the accompanying writ petition under Article 226 and 227 of the Constitution of India seeking redressal against the undue delay in the adjudication of the appeal by the Ld. DRAT Delhi; unlawful forfeiture of her Earnest Money Deposit/ 25% of the Sale consideration by the Respondent No.1 Bank; and the erroneous order of the Ld. DRT, Delhi dated 31.07.2023.

That the Petitioner is the successful auction purchaser in the 1st auction held on 22.08.2019 concerning the properties situated at 70 B/2, Najafgarh Road, Industrial Area, Rama Road, Delhi-15 (hereinafter referred to as "the Properties"). Despite the fact that the SA filed by the Borrower (Respondent No. 2) have been dismissed on merits, the Ld. DRT-I failed to confirm the 1st auction and erroneously directed to conduct a fresh auction, which is completely against the mandate.

That during the pendency of the matter before the Ld. DRT and Ld. DRAT, the Respondent Bank has taken coercive action against the Petitioner, including arbitrarily forfeiting the Earnest Money Deposit/25% of the Sale consideration amount of more than INR 1 crore deposited by the Petitioner. This action is illegal, arbitrary, and contrary to settled principles of law.

That the Ld. DRT-I erroneously considered the Order dated 04.09.2019 as 'active and in operation,' whereas the Remand Order had rendered the said order inoperative and restored the status of the 1st auction as "active." The Ld. DRT-I thus misinterpreted the legal position and failed to recognize the vested rights of the Petitioner as a successful auction purchaser.

That due to the unwarranted delay in disposal of the Appeal pending before the Hon'ble DRAT, New Delhi, the Petitioner continues to suffer financial hardship, as the invested sum remains blocked, and the opportunity to take possession of the property has been denied.

That the Petitioner has a strong prima facie case in its favor, as: a) The Hon'ble High Court in its Remand Order did not direct a fresh auction but only required reconsideration by the Ld. DRT-I. b) The Respondent Bank has itself stated that it does not intend to conduct a fresh auction, yet the Ld. DRT-I has mandated one. c) The forfeiture of the Petitioner's Earnest Money Deposit is wholly illegal and unjustified. d) The balance of convenience lies in favor of the Petitioner, who has suffered significant financial and legal prejudice. e) Irreparable harm will be caused to the Petitioner if coercive actions continue, including loss of EMD and denial of property possession.

That unless an interim stay is granted, the Respondent Bank may proceed with a fresh auction or other coercive measures, rendering the present writ petition infructuous and causing grave and irreparable loss to the Petitioner.

That the Contents of the petition are not repeated here for the sake of brevity but the same may be treated as part and parcel of this Application.

That the Petitioner craves liberty of this Hon'ble Court to place on record material facts if required which would prove that the balance of convenience is in favor of the Petitioner.

That no harm would be caused to the Respondent No.1 in case the stay is granted but grave prejudice would be caused to the Petitioner in case the stay is not granted in favour of the Petitioner.

That this Application is made bona fide and in the interest of Justice.

PRAYER

It is therefore most respectfully prayed that this Hon'ble Court may graciously be pleased to:

Pass appropriate Orders directing the Ld. DRAT, New Delhi to expeditiously dispose of the Regular Appeal No. 213/2023 filed by the Petitioner herein; and

Pass appropriate Orders thereby staying the operation and effect of the Order dated 31.07.2023 passed by the Ld. DRT, Delhi in S.A No.174 of 2019/ TSA No.1033 of 2022 in the interim during the pendency of the captioned Writ Petition; and

Pass appropriate Orders thus directing the Respondent No. 1 bank not to conduct fresh auction of the subject properties;

Pass such other and further orders as deemed fit by this Hon'ble Court in the facts and circumstances of the case.

PETITIONER

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

E-mail: adv@ronniebrara.com

Date: .08.2026

Place: Delhi

IN THE HON'BLE HIGH COURT OF DELHI AT NEW DELHI

(CIVIL WRIT JURISDICTION)

CIVIL MISC. APPLICATION NO. _____ OF 2025

IN

WRIT PETITION (CIVIL) NO. _____ OF 2026

IN THE MATTER OF:

MAMTA GOYALPETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR.RESPONDENTS

AFFIDAVIT

I, Mamta Goyal, aged about 43 years, W/o Sh. Deepak Goyal, R/o C - 37A, Inderpuri, New Delhi-110021, do hereby solemnly affirm and state on oath as under:

That the Deponent is the Petitioner and is well conversant with the facts of the case and as such competent to swear and file this affidavit.

That the contents of the accompanying Application under Section 151 of the Code of Civil Procedure, 1908 are true and correct and certain paras of the Application are believed to be correct on legal advice received and may kindly be read as part of the present affidavit, the same are not being repeated herein for the sake of brevity.

DEPONENT

VERIFICATION:

Verified at Delhi on this _____ date of August, 2026 that the contents of the above affidavit are true to my knowledge based on records and nothing material has been concealed.

DEPONENT

IN THE HON'BLE HIGH COURT OF DELHI AT NEW DELHI
(CIVIL WRIT JURISDICTION)

CIVIL MISC. APPLICATION NO. _____ OF 2025

IN

WRIT PETITION (CIVIL) NO. _____ OF 2026

IN THE MATTER OF:

MAMTA GOYALPETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR.RESPONDENTS

APPLICATION FOR EXEMPTION UNDER SECTION 151 OF CPC ON BEHALF OF THE
PETITIONER FOR EXEMPTION FROM FILING TRUE AND CORRECT COPIES OF
ANNEXURES FILED ALONGWITH THE APPLICATION

MOST RESPECTFULLY SHOWETH:

That the Petitioner has filed the accompanying writ petition under Article 226 and 227 of the Constitution of India seeking redressal against the undue delay in the adjudication of the appeal by the Ld. DRAT Delhi; unlawful forfeiture of her Earnest Money Deposit/ 25% of the Sale consideration by the Respondent No.1 Bank; and the erroneous order of the Ld. DRT, Delhi dated 31.07.2023.

That the contents of the aforesaid Petition are not being reproduced for the sake of brevity and to avoid repetition. However, the Petitioner craves the leave and liberty of this Hon'ble Court to treat the averments made in the Petition as part and parcel of the instant Application and to deem the same to be incorporated herein.

That the Petitioner has instituted the present Petition in haste and, therefore has not been in a position to file Certified order copies of the annexures.

The Petitioner is filing dim copies of some of the annexures along with the Petition in the form set out therein.

That the Petitioner submit that grave injury, prejudice and irreparable damage will be caused to the Petitioner in case the present Application for exemption is not allowed and the Petition is not heard without the original of the any original/legible/fair/dim/certified copies of annexures. On the other hand, no prejudice as such will be caused to the other parties.

That the present Application is made bona fide in the interests of justice.

PRAYER

It is therefore most respectfully prayed that this Hon'ble Court may graciously be pleased to:

Allow the present Application and exempt the Petitioner from filing the original and true copies of the annexures relied upon by the Petition; and/or

Pass such other and further orders as deemed fit by this Hon'ble Court in the facts and circumstances of the case.

PETITIONER

Through,

Ronnie S. Brara, Advocate D-6336/2017 Counsel for the Petitioner

M-6, L.G.F., Green Park Main, New Delhi-110016

Phone No: 8882228686

E-mail: adv@ronniebrara.com

Date: .08.2026

Place: Delhi

IN THE HON'BLE HIGH COURT OF DELHI AT NEW DELHI

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CIVIL MISC. APPLICATION NO. _____ OF 2025

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WRIT PETITION (CIVIL) NO. _____ OF 2026

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MAMTA GOYALPETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR.RESPONDENTS

AFFIDAVIT

I, Mamta Goyal, aged about 43 years, W/o Sh. Deepak Goyal, R/o C - 37A, Inderpuri, New Delhi-110021, do hereby solemnly affirm and state on oath as under-

That the Deponent is the Petitioner and is well conversant with the facts of the case and as such competent to swear and file this affidavit.

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DEPONENT

VERIFICATION:

Verified at Delhi on this ____ date of August, 2026 that the contents of the above affidavit are true to my knowledge based on records and nothing material has been concealed.

DEPONENT

IN THE HON'BLE HIGH COURT OF DELHI AT NEW DELHI
(CIVIL WRIT JURISDICTION)

WRIT PETITION (CIVIL) NO. ____ OF 2026

IN THE MATTER OF:

MAMTA GOYAL ...PETITIONER

VERSUS

PUNJAB NATIONAL BANK & ANR. ...RESPONDENTS

KNOW ALL to whom these presents shall come that I, Mamta Goyal, the Petitioner herein, do hereby appoint

RONNIE S. BRARA, ADVOCATE

D-6336/2017

M-6, L.G.F., GREEN PARK MAIN, NEW DELHI-110016

Ph: 8882228686 | Email: adv@ronniebrara.com

hereinafter called advocate(s) to do my/our advocates in the above noted case/cases and authorize him/them:

To act appear and plead in the above noted case in this court or in any other court in which the same be tried or heard and also in the appellate Courts.

To sign, file, verify and present-pleadings, replications, appeals, cross-objections, or petitions for executions, review, revision, restoration, withdrawal, compromise or other petitions replies, objections or affidavits to other documents as may be deemed necessary or proper for the prosecution of said case in all its stages.

To file and take back documents.

To withdraw or compromise the said case or submit to arbitration any differences or disputes the may arise touching or in any manner relating to the said case.

To take out execution proceedings.

To deposit, draw and receive moneys, cheque(s) and grant receipts thereof and to do all other acts deeds and things, which may be necessary to be done for the progress and in the course to prosecution of the said case.

To appoint/instruct any other Legal practitioner authorising him to exercise the power and authority hereby conferred upon the Advocate whenever he may think fit to do so and sign, the power of attorney on my/our behalf.

And I/we the undersigned do hereby agree to ratify and confirm acts as if done by the Advocate or their substitutes in the matter as my/our own acts, as if done by me/us to contents and purposes.

And I/we undertake that I/we or my/our duly authorised agent would appear in court all hearings will confirm the Advocates for appearance when case is called.

And I/we the undersigned do hereby agree not to hold the Advocate or their substitute responsible to the result of the said case, consequence for his absence from the court when the said case, called up for hearing or any negligence of the said advocates or his substitute. The adjournment costs whenever ordered by the court shall be of the advocate, which he shall receive and retain for himself.

And I/we the undersigned do hereby agree that in the event of the whole or any part of the fee agreed by me/us to the Advocate remaining unpaid they will be entitled/allowed for an adjournment. Advocates would be entitled to withdraw from the prosecution of the said case until the same is paid.

IN WITNESS WHERE OF I/we do hereunto set my/our hand to these presents the contents of which have been understood by me/us this ____ day of August, 2026.

Accepted subject to the terms of the fees.

ADVOCATE ADVOCATE CLIENT CLIENT